

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2025CUBC056365: LEMON GROVE PLAZA, INC., A CALIFORNIA CORPORATION
vs MARTHA YBANEZ, et al.**

07/16/2026 in Department 21

Motion for Order Granting Relief from Default

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Defendant Martha Ybanez’s Motion for Order Granting Relief from Default (*Opposed*)

Tentative Ruling: Defendant Martha Ybanez’s motion for relief from default is GRANTED. The clerk’s default entered against Martha Ybanez on March 6, 2026, is VACATED.

Defendant shall file and serve a corrected answer or other responsive pleading within 10 days after service of notice of this ruling.

Counsel for Defendant is to give notice of the Court’s ruling within two (2) court days.

Discussion:

CCP § 473(b) authorizes the Court, on just terms, to relieve a party from a default taken through mistake, inadvertence, surprise, or excusable neglect, provided the application is made within a reasonable time and no more than six months after entry of default. Relief is liberally granted where the moving party acts with reasonable diligence, the opposing party will not suffer substantial prejudice, and the matter may be resolved on its merits. (*McCormick v. Board of Supervisors* (1988) 198 Cal.App.3d 352, 360.)

Defendant was served on January 9, 2026. She declares that shortly thereafter her daughter was struck by a vehicle, suffered serious injuries, and underwent medical testing that disclosed six nodules requiring prompt biopsies. Defendant states that she spent January and February caring for her daughter and attending to these medical concerns. These circumstances encompass Defendant’s deadline to respond and provide a plausible explanation for her failure to answer before default was entered. A serious family medical emergency may constitute excusable

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neglect where the resulting anxiety and responsibilities cause a party to overlook a litigation deadline. (See *Stub v. Harrison* (1939) 35 Cal.App.2d 685, 689-690; *Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, 140-141.)

Defendant's diligence showing is less substantial. The motion was filed approximately three months after entry of default. Her declaration does not state when she learned of the default or explain the approximately two-month period between entry of default and counsel's May 5, 2026 appearance. Nor does it explain the additional month before the motion was filed on June 5, 2026. An unexplained delay may support denial of relief. (*Benjamin v. Dalmo Mfg. Co.* (1948) 31 Cal.2d 523, 529.)

On balance, however, relief is warranted. No default judgment had been entered when Defendant moved, the application was filed well within the six-month statutory limit, and Plaintiff identifies no loss of evidence, unavailable witness, or other substantial prejudice that could not be addressed through appropriate terms. Any doubts are resolved in favor of permitting adjudication on the merits. (*Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249, 255-256.)

Plaintiff submits substantial evidence disputing Defendant's assertion that the remaining rent was forgiven, including negotiation emails and a signed termination agreement preserving Defendant's liability beyond the agreed credit. That evidence may significantly weaken Defendant's asserted defense. It does not, however, justify deciding the disputed contract issues on a motion for statutory relief from default under CCP § 473(b).

The Court does not reach Defendant's alternative request for equitable relief.

Accordingly, Defendant's motion for order granting relief from default is GRANTED. The clerk's default entered against Martha Ybanez on March 6, 2026, is VACATED.

Defendant's proposed general denial is not deemed filed because it omits the affirmative defense asserted in her motion and declaration. Defendant shall file and serve a corrected answer or other responsive pleading within 10 days after service of notice of this ruling. The Court expresses no opinion concerning the legal or factual merit of any defense Defendant may plead.

Plaintiff's pending request for entry of default judgment shall not proceed in light of the order vacating default.

Counsel for Defendant is to give notice of the Court's ruling.